How to run a strata meeting

nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/how-to-run-a-strata-meeting

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Strata scheme decisions are made at strata meetings. There are set steps for running strata meetings, making sure every eligible person can have their say.

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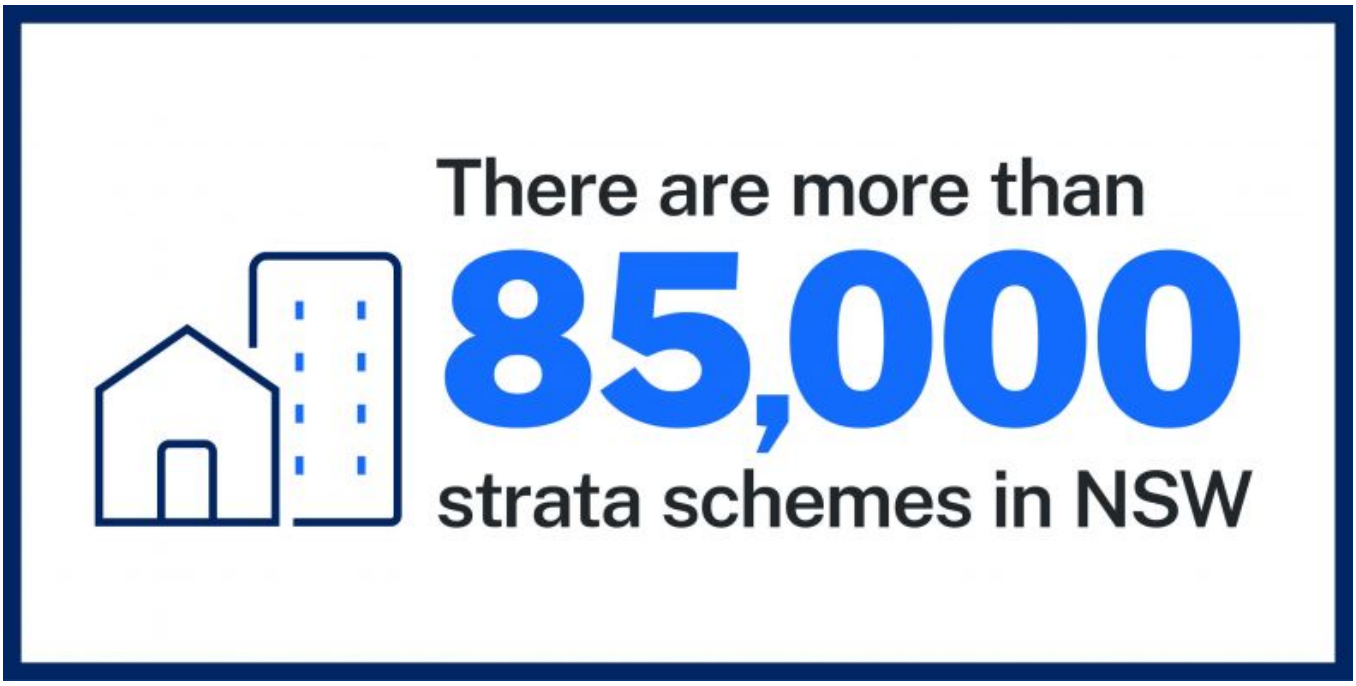
Key information

- Important decisions are made at strata meetings, especially the annual general meeting.
- Disputes can happen if owners feel they aren't being listened to, or the correct process is not followed.
- So it's important that meetings are run correctly and everyone gets a voice.
- The secretary must give minutes to all owners after the meeting.
- Strata committee meetings are run separately to general meetings.

Did you know?



Types of meetings

There are different strata meetings for the **owners corporation and the strata committee (https://www.nsw.gov.au/housing-and-construction/strata/roles)**.

1 Annual general meetings

The owners corporation must have at least one meeting every year, called an annual general meeting (AGM).

AGMs are planned yearly events, and are very important because these are where you discuss how your building or complex (the scheme) is running, and make decisions on how it's going to run over the year ahead.

AGMs are also when the owners corporation elect people to act on their behalf, including workers.

General meetings

General meetings are called when the owners need to come together to make a decision that can't wait for the next AGM. They are usually to address a single issue.

2 Strata committee meetings

Strata committee meetings are held by the strata committee to discuss and vote on day-to-day items. They are run in a similar way to AGMs, however there are some **key differences (#toc-strata-committee-meetings)**.

How to call a meeting

Who can call a general meeting?

It is usually the strata committee secretary's job to arrange and tell owners about upcoming general meetings.

If the scheme has a strata manager, they can be given the job to call meetings instead.

An owner or a group of owners can also decide to call a meeting, as long as they hold at least 25% of the total 'unit entitlements' in the scheme. To arrange a meeting, the owners must write to the secretary.

How to give notice

You must tell all owners and tenants at least seven days before the meeting.

The notice must include:

- the planned meeting date, time and place
- the agenda
- an explanation of what the 'quorum' is for the meeting
- statements that:
  - voting can be done by an owner, their nominee or 'proxy'
  - an owner behind on levies cannot vote, unless a motion requires approval by everyone
  - an owner's vote doesn't count if a 'priority vote' has already been cast on the same issue
  - any pre-meeting votes are cancelled out if the motion is changed at the meeting. For detail, go to '**How voting works (#toc-how-voting-works)**' on this page.

You can notify owners and tenants by putting the notice on the communal noticeboard, or by giving the notice to each owner by email, hand or post. If you live in a large strata scheme (more than 100 lots), you must do both.

The notice will also need to detail any electronic means for voting at the meeting. For more information, see **Ways of voting (#voting)** below.

Documents you will need

Before the meeting, the secretary will need to make a **meeting agenda (https://www.nsw.gov.au/strata/serving-on-a-committee/how-to-run-a-strata-meeting#toc-meeting-agendas)** and give owners copies of other documents. You can do this in person, via post or email.

The secretary will need to prepare the following documents:

- a copy of the minutes from the last general meeting
- a copy of the key financial statements (these are prepared by the treasurer)
- any auditor's report (if an audit was conducted)
- details of each insurance policy held by the owners corporation
- a copy of the 10-year capital works fund plan
- the strata manager or building manager's contract (if a manager will be appointed at the meeting).

If requested by an owner, you must also give a copy of the full financial statements of **the administrative fund, capital works fund and any other funds (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/finances-insurance)** at least 2 days before the meeting.

Roles in strata

Learn more about the difference between the owners corporation and the strata committee, as well as the positions on the committee.

This will help your meeting run smoothly.

Learn more (https://www.nsw.gov.au/housing-and-construction/strata/roles)

Meeting agendas

The secretary prepares the agenda for meetings. The agenda for an AGM must include set items and motions. You can also include others you would like to discuss.

What to include on an AGM agenda

Include these items and motions.

1 Attendance and minutes

1. Item checking that the 'quorum' has been met for the meeting.
2. A motion to accept the minutes of the last general meeting.

2 Strata committee

1. A motion to decide what the owners corporation and what the strata committee will be responsible for in the year ahead.
2. A motion to decide the number of strata committee members.
3. A motion to elect the strata committee.
4. An item to announce the elected tenant representative (if at least half the lots in the scheme are rented).

3 Utilities and repairs

1. An item to report on the **annual fire safety statement (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/safety)** (if required, as some building types don't need these) and arrange for next year.
2. An item to decide the electricity, gas and other utility providers.
3. An item to discuss any **building defects and how to fix them (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/repairs-capital-works)** - this item is only needed until the end of the warranty periods for buildings in the scheme.

4 Other workers

1. If there is a strata manager, a motion to discuss what commissions or training have been or might be given or paid for in the next 12 months.
2. A motion to consider appointing an auditor.

5 On finances

1. A motion to decide how to deal with unpaid or overdue levies.
2. A motion to accept the financial statements for the past financial period.
3. A motion to consider insurance policies that have not already been taken out.
4. An item to prepare or review the **10-year capital works plan (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/finances-insurance)**.

How to run a meeting

The chairperson on the strata committee runs meetings. The secretary takes minutes at the meeting. These jobs can be given to a strata manager.

Check everyone is there

Before a meeting starts, the chairperson should check which people at the meeting have the right to vote.

They then must check that the 'quorum' has been met. A quorum is the minimum number of owners that must be at meeting for it to go ahead.

At a general meeting, it is either:

- 25% or more of people that have the right to vote, or
- enough eligible owners to represent 25% or more of the scheme's total unit entitlements

What if not enough people show up?

The quorum must be met within 30 minutes of the meeting start time.

If not, the meeting can either be postponed for seven days, or the chairperson can decide that the people there make up a quorum, and the meeting can go ahead.

Any postponed meeting automatically goes ahead after seven days, even if the quorum is not met again.

What about tenants at meetings?

Tenants are allowed to attend a general meeting but are not allowed to speak or vote on any items or motions, unless they hold a 'proxy vote'.

Tenants can be asked to leave when finances are being talked about.

Go through the agenda and take minutes

Follow the agenda to guide you through the meeting.

The secretary will need to take minutes that include the details of motions, items and resolutions that happen at the meeting.

If a pre-meeting vote gets cancelled out by a motion at the meeting, make sure to include this in the minutes and say that the secretary can call a follow-up meeting to re-consider the motion.

After the meeting

After the meeting, the secretary must give the minutes from the meeting to all owners within seven days.

You will also need to keep the meeting agenda, financial statements, minutes and insurance details on file for **your records (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/record-keeping-requir**

ements).

What about follow-up meetings?

Owners can ask the secretary for a follow-up meeting in writing.

There must be enough owners to represent 25% or more of the scheme.

Your AGM documentation will help your strata scheme with its annual reporting to NSW government

The person in your strata scheme responsible for reporting key information to NSW government each year can source certain information for the reporting from your latest AGM documents. This includes the AGM date, the date when the annual fire safety statement was issued (if any), the current insured replacement value of the strata scheme and the reported balance of the capital works fund. Find out more about **strata annual reporting (https://www.nsw.gov.au/housing-and-construction/strata/annual-reporting)**.

How voting works

Who can vote

Owners automatically have the right to vote at strata meetings, as long as they don't owe the scheme any unpaid levies.

If they can't attend a meeting in person or don't want to go, owners can choose to use:

- a proxy vote
- a pre-meeting electronic vote (if they've been notified that pre-meeting voting will be allowed)
- online and other electronic voting (if the owners corporation has set up electronic voting).

Owners can only have their vote taken away in special circumstances. This is called a 'priority vote'.

Further detail on ways of voting is set out below.

Ways of voting

Owners can meet and vote in person, or by using electronic means specified in a meeting notice.

However, owners need to pass a resolution approving the use of **pre-meeting electronic voting (#pre-meeting)**. Pre-meeting electronic voting cannot be used for an election of the strata committee.

If any electronic voting will be used, the secretary, or the strata managing agent must take reasonable steps, such as, providing clear and accessible instructions and technologies so all entitled persons can take part in and vote at a meeting. Read more about these **requirements (https://legislation.nsw.gov.au/view/html/inforce/current/sl-2016-0501#sec.14B)**.

Proxy votes

A proxy is a person who represents a voter at a general meeting. An owner can make almost anyone their proxy, including a tenant or a member of the strata committee.

If you live in a scheme with 20 lots or less, the person you nominate cannot already hold a proxy vote for someone else.

If you live in a larger scheme, the person you nominate cannot already hold a proxy vote for more than 5% of the total number of properties.

If you want to get a proxy, you must give the secretary a

proxy form (PDF 100.29KB) (https://www.nsw.gov.au/sites/default/files/2023-08/Strata%20proxy%20appointment%20form.pdf)
at least 24 hours before a meeting (for a scheme of 100 lots or more) or by the start of the meeting (for any other schemes).

A proxy has no effect if the person who gave the proxy attends the meeting and votes in person. A person given the proxy cannot transfer it to anyone else.

A proxy cannot be used by a building manager, strata agent or property manager for any benefit. For example, voting to increase their term of appointment.

Pre-meeting votes

If a strata scheme has passed a resolution approving the use of pre-meeting electronic voting, it can choose to hold a pre-meeting vote on one or more matters. This lets owners vote on these matters before the meeting.

However, pre-meeting electronic voting can't be used to elect members of the strata committee.

If a matter only uses pre-meeting voting, the result is conclusive.

Or, a matter can be voted on using both pre-meeting voting and voting at the meeting:

> The result of voting is worked out by tallying up the votes before and during the meeting
> If the motion being voted on is amended at the meeting, then the minutes must state this. These must also state how an eligible voter can ask for a new meeting to revisit the matter. But – there are limits to amending a motion: it can't change the subject matter being voted on. This would need to be put to a new meeting instead.

Any electronic means of voting to be used for a meeting, including pre-meeting electronic voting, must be stated in the meeting notice. The secretary or strata managing agent also need to take reasonable steps, such as, providing clear and accessible instructions and technologies, so all entitled persons can take part in and vote at a meeting.

Priority votes

A priority vote can be cast by a mortgagee. A mortgagee is a person or company (like a bank) who owns the mortgage on a property.

It is called a 'priority' vote because it get priority over the owner and discounts their vote.

Priority votes are limited to specific issues: insurance, budgeting, setting levies and any special or unanimous resolutions.

They can also be used for any payments that are bigger than $1,000 multiplied by the number of properties in a scheme. For example, $4,000 for a four property scheme or $10,000 for a ten property scheme.

Poll voting

Any voter can call for a "poll" before or just after a vote takes place.

Calling for a poll changes a vote by general resolution so that it uses unit entitlement, instead of one vote per lot.

How many votes to pass a motion?

It's not one vote per owner. It's based on 'unit entitlement'.

Unit entitlement represents your share of the strata scheme and can be different depending on the property.

For example, a small apartment might have a unit entitlement of 50, while a larger apartment might have a unit entitlement of 75.

A person with higher unit entitlements has a stronger voting power, but also pays higher levies.

You can find your unit entitlement by looking at your property on the **strata plan (https://www.nsw.gov.au/housing-and-construction/strata/buying-a-strata-property#Whatyouwillown)**.

Types of votes

The result of a vote can be worked out by adding the unit entitlements of the people voting for and against.

For a general resolution

Each owner has one vote per property they own. Over 50% of people must vote for the motion for it to pass.

These votes are also called a 'simple majority vote' and do not use unit entitlement.

For a special resolution

a special resolution is a vote by unit entitlement. For it to pass, no more than 25% of the votes can be against the proposal

For a sustainability infrastructure resolution

a sustainability infrastructure resolution means that votes against must be less than 50% for it to be approved. It is a vote by unit entitlement.

Learn more about sustainability infrastructure (https://www.nsw.gov.au/housing-and-construction/strata/living/repairs-and-maintenance)

For a unanimous resolution

For a resolution to pass, no one must vote against it.

Voting example

An owners corporation is holding a general meeting, at which they want to vote on getting new sustainable lights installed.

There are five owners at the meeting.

The secretary works out that owner A has a unit entitlement of four, owner B has a unit entitlement of three, while the remaining three owners have a unit entitlement of one. This gives a total of 10 unit entitlements of owners present at the meeting.

The secretary calls a motion on a sustainability infrastructure resolution. Owners A and B vote against the motion. The other three owners vote for the motion.

Even though more owners voted for the motion than against, the motion does not pass. This is because owners A and B hold 70% of the unit entitlements of people voting. Sustainability votes are decided by voters holding more than 50% of the unit entitlement.

Strata committee meetings

Strata committee meetings are held by the strata committee to discuss and vote on day-to-day topics. They are run slightly differently to general meetings.

How to call a strata committee meeting

A strata committee meeting can be called by the secretary, or if one-third of the strata committee members ask for one to be called.

To call a meeting, the secretary or strata agent must notify every owner at least 3 days beforehand that a meeting is going to happen. The tenant representative must also be notified, if your scheme has one.

The notice must include the planned meeting date, time and place and an agenda.

How to run a strata committee meeting

Can owners speak?

Owners can’t speak at a strata committee meeting unless the committee allows them to.

At least half of the strata committee must be at a meeting for it to go ahead.

The chairperson must attend all meetings, unless they are away. If that happens, they need to appoint another committee member to replace them for the meeting.

Follow the agenda to guide you through the meeting.

The secretary will need to take minutes that include the details of motions, items and resolutions that happen at the meeting.

Voting

Can owners vote?

No, owners can't vote at a strata committee meeting. But, they can object to a strata committee decision.

They can object to a motion if they (or a group of owners) hold more than one third of the unit entitlements. They must write to the secretary to object before the strata committee makes a decision.

If the strata committee is prevented from deciding on a matter because of an objection, the secretary can add the matter to the agenda of the next general meeting of the owners corporation. This allows all eligible voters to have a say on the matter.

Each committee member has one vote, unless they owe money to the scheme.

The tenant representative does not have a vote. The tenant representative is the only tenant that can attend strata committee meetings.

Voting power is based on a simple majority, so if more than 50% of strata committee members vote for a resolution, it will be passed.

Ways of voting

Strata committees can choose to vote on issues in person, electronically or in writing. Proper notice must be given to all strata committee members.

Strata committees can meet and vote in person, or by using electronic means specified in the meeting notice. However, strata committees will need to pass a resolution approving the use of pre-meeting electronic voting. Pre-meeting electronic voting can't be used to elect officers of the strata committee.

If any electronic voting will be used, the secretary, or the strata managing agent must take reasonable steps, such as, providing clear and accessible instructions and technologies so all entitled persons can take part in and vote at a meeting. Read more about these **requirements (https://legislation.nsw.gov.au/view/html/inforce/current/sl-2016-0501#sec.14B)**.

After the meeting

Meeting minutes must be given within seven days to all committee member and owners.

In large schemes, minutes only need to be given to owners who request a copy.

You will also need to keep the meeting agenda, financial statements, minutes and insurance details on file for **your records (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/record-keeping-requirements)**.

Need more help?

Contact Fair Trading

If you have any further questions about strata, you can contact Fair Trading via phone or in-person at a Service NSW centre.

Phone:**13 32 20 (https://www.nsw.gov.au/tel:13 32 20)**8:30am to 5pm, Monday-Friday
In person:**Find your nearest Service NSW Centre (https://www.service.nsw.gov.au/service-centre)**

Related information

Popular pages

Managing finances and insurance (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/finances-insurance)

Strata schemes must follow rules about how they manage finances. These include rules about levies, funds and planning for the future.

→

Strata disputes and complaints

Learn how disputes between owners, or residents, or complaints against strata managers and other workers can be resolved.

Rules for living strata (https://www.nsw.gov.au/housing-and-construction/strata/living/by-laws)

Understand the strata by-laws where you live, how to change them, and what to do if there's a breach of the by-laws in your strata scheme.

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Helpful links

- How do I contact the strata committee? → (https://www.nsw.gov.au/housing-and-construction/strata/roles#toc-strata-committee)
- How to know who my strata manager is? → (https://www.nsw.gov.au/housing-and-construction/strata/roles#toc-strata-managers)
- How do I get a copy of my by-laws? → (https://www.nsw.gov.au/housing-and-construction/strata/living/by-laws#toc-how-to-get-a-copy-of-the-by-laws)
- How do I get renovations approved? → (https://www.nsw.gov.au/housing-and-construction/strata/living/renovations)

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